

1 ENGROSSED HOUSE  
2 BILL NO. 3413

By: Strom, West (Josh),  
Crosswhite Hader,  
Dobrinski, Stinson, Fugate,  
Woolley, Kendrix, Kelley,  
and Hill of the House

and

Woods of the Senate

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10 An Act relating to public finance; amending 62 O.S.  
11 2021, Section 34.36, as amended by Section 2, Chapter  
12 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.36),  
13 which relates to annual estimate of funds needed by  
14 state agencies; requiring agencies to report on  
15 contractors; providing details to be reported on;  
16 directing agency to publicly post final consultant  
17 report; and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 62 O.S. 2021, Section 34.36, as  
20 amended by Section 2, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025,  
21 Section 34.36), is amended to read as follows:

22 Section 34.36. A. On the first day of October preceding each  
23 regular session of the Legislature, each state agency, including  
24 those created or established pursuant to constitutional provisions,  
shall report to the Director of the Office of Management and

1 Enterprise Services and the Chair and Vice Chair of the Legislative  
2 Oversight Committee on State Budget Performance an itemized request  
3 showing the amount needed for the ensuing fiscal year beginning with  
4 the first day of July.

5 B. The forms which must be used in making these reports shall  
6 be approved by the Director of the Office of Management and  
7 Enterprise Services and the Legislative Oversight Committee on State  
8 Budget Performance.

9 C. The forms shall be uniform, and shall clearly designate the  
10 information to be given.

11 D. The information provided shall include, but not be limited  
12 to:

13 1. A budget analysis of existing and proposed programs  
14 utilizing performance-informed budgeting techniques. Such analysis  
15 shall be included as a part of the estimate of funds needed;

16 2. A statement listing any other state, federal or local  
17 agencies which administer a similar or cooperating program and an  
18 outline of the interaction among such agencies;

19 3. A statement of the statutory authority for the missions and  
20 quantified objectives of each program;

21 4. A description of the groups of people served by each program  
22 in the agency;

23 5. A quantification of the need for the program;

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1       6. A description of the tactics which are intended to  
2 accomplish each objective;

3       7. A list of quantifiable program outcomes which measure the  
4 efficiency and effectiveness of each program;

5       8. A ranking of these programs by priority;

6       9. Actual program expenditures for the current fiscal year and  
7 prior fiscal years and the number of personnel required to  
8 accomplish each program;

9       10. Revenues expected to be generated by each program, if any;

10       11. With respect to appropriated state agencies, a detailed  
11 listing of all employees and resources dedicated to the provision of  
12 financial services including but not limited to procurement,  
13 payroll, accounts receivable and accounts payable. The provisions  
14 of this paragraph shall not be applicable to the Oklahoma State  
15 Regents for Higher Education or to any institutions within The  
16 Oklahoma State System of Higher Education; ~~and~~

17       12. A certification that following the effective date of this  
18 act and prior to July 1, 2011, no expenditure shall have been made  
19 or funds encumbered for the purchase, lease, lease-purchase or  
20 rental of any computers, software, telecom, information technology  
21 hardware, firmware or information technology services, including  
22 support services without the prior written approval of the State  
23 Comptroller or his or her designee; and

1        13. A list of all contractors, contract amounts, and contract  
2 status. If a contract is incomplete or in pending status, the  
3 agency must provide a report on the estimated time of completion.  
4 The agency must also list whether the contract is for services or to  
5 augment staffing. The report should include any actions taken in  
6 response to any recommendations of a consultant contracted with for  
7 services. The agency must also publicly post the final consultant  
8 report on the state's purchasing website so that it is linked to the  
9 original contract.

10        E. These appropriated agencies shall make an itemized estimate  
11 of needs for the ensuing fiscal year and the following two (2)  
12 fiscal years and request for funds for the ensuing fiscal year and  
13 an estimate of the revenues from all sources to be received by the  
14 agency during the ensuing fiscal year and the following two (2)  
15 fiscal years.

16        F. The Director of the Office of Management and Enterprise  
17 Services shall submit to the Governor and the Legislative Oversight  
18 Committee on State Budget Performance no later than the fifth day of  
19 October a complete list of all spending agencies which have failed  
20 to submit budgets by October 1.

21        G. The reports required by this section shall include an  
22 itemized listing of outstanding capital lease debt and estimated  
23 capital lease needs for the ensuing fiscal year and the following  
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1 two (2) fiscal years, and shall be provided on forms prescribed by  
2 the Director of the Office of Management and Enterprise Services.

3 H. For the purposes of this section, "capital lease" means a  
4 lease-purchase agreement which provides an option for the State of  
5 Oklahoma or its agencies to purchase property, including personal  
6 and real property, which is the subject thereof and/or a lease  
7 agreement that provides an option for the State of Oklahoma or its  
8 agencies to lease such property, which is the subject thereof, at a  
9 nominal annual amount, after a period in which leased property is  
10 rented at fair market value.

11 I. Not later than January 1, the Director of the Office of  
12 Management and Enterprise Services shall publish a shared services  
13 cost-performance assessment report documenting the amount of each  
14 state agency's cost for providing shared services. The lowest  
15 ranking state agencies shall enter into a contract with the Office  
16 of Management and Enterprise Services for the provision of shared  
17 financial services, provided that the Director of the Office of  
18 Management and Enterprise Services determines that implementation of  
19 such a contract would be feasible and documents that the contractual  
20 agreement will result in cost savings or efficiencies to the state.  
21 Contracts required by this subsection shall be entered into at the  
22 start of the next fiscal year. When a state agency is contracted  
23 with the Office of Management and Enterprise Services for the  
24 provision of shared financial services, the agency may discontinue

1 using shared services when documentation showing that the agency can  
2 provide the services at a lower cost to the state is provided to and  
3 approved by the Director of the Office of Management and Enterprise  
4 Services. As used in this subsection, "shared services" means  
5 process, resource utilization or action as defined by administrative  
6 rule. On a yearly basis the Director of the Office of Management  
7 and Enterprise Services shall compile and publish a report  
8 documenting the cost savings resulting from shared services  
9 contracts. The provisions of this subsection shall not be  
10 applicable to the Oklahoma State Regents for Higher Education or to  
11 any institutions within The Oklahoma State System of Higher  
12 Education.

13 SECTION 2. This act shall become effective November 1, 2026.

14 Passed the House of Representatives the 24th day of March, 2026.

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Presiding Officer of the House  
of Representatives

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19 Passed the Senate the \_\_\_\_ day of \_\_\_\_\_, 2026.

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Presiding Officer of the Senate

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